

Sudama Prasad Patairiya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 March 2019 · Writ-C No. 7892 of 2019 · WRIT - C No. - 7892 of 2019 · **Writ dismissed; relegated to CGRF and Ombudsman under clause 7.10.**

HEADNOTE

A writ seeking a new electricity connection was dismissed for alternative remedy. A dispute as to grant of connection lies before the Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, and thereafter before the Ombudsman under clause 7.10(iv). Counsel did not show why the petitioner should not be relegated to that route.

FACTUAL SUMMARY

The petitioner, Sudama Prasad Patairiya, applied on 28 January 2019 for a new electricity connection, which was not granted. He filed Writ-C No. 7892 of 2019 in the Allahabad High Court against the State of Uttar Pradesh, seeking a direction for the connection. Counsel for the petitioner and the Standing Counsel for the State were heard. The controversy placed before the Court was confined to that non-grant of a new connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

new-connection-dispute-cgrf-ombudsman-alternative-remedy

HOLDING

A dispute regarding grant of a new electricity connection is to be raised before the Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, and thereafter before the Ombudsman under clause 7.10(iv). The writ was dismissed on that alternative remedy, counsel not having shown why the petitioner should not be relegated to it. ¶ 3-4

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10 The Court treated non-grant of a new connection as a grievance for the Consumer Grievance Redressal Forum under clause 7.10(i) and, thereafter, the Ombudsman under clause 7.10(iv), and dismissed the writ for that alternative remedy. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON MERITS TO A NEW ELECTRICITY CONNECTION ON THE APPLICATION DATED 28.01.2019.

The Court did not examine the application or any licensee refusal; the writ was dismissed solely for alternative remedy under clause 7.10. ¶ 2-4